

AURAN, et al. V. GORDON

15CV41331

PLAINTIFFS' MOTION TO ENFORCE SETTLEMENT

This is a neighbor dispute over a fence and other constructs allegedly encroaching over the mutual property line. Before the Court is an unopposed motion to enforce a settlement.

On 03/25/19, the parties attended a Mandatory Settlement Conference. The minute order from that hearing indicates that the parties "have agreed to split the costs of the survey" and that a "further Settlement/Trial Setting Conference" will be scheduled. According to plaintiffs' counsel, the parties also agreed that if the survey showed encroachments, "they would be removed."

On 05/21/19, defendant Carol Gordon passed away. The oral settlement was never reduced to writing.

On 04/10/20, plaintiffs filed a "Creditor's Claim" in a related *Heggstad* petition for the ostensible purpose of protecting the oral settlement. (See 19PR8204.)

On 05/04/20, the estate tendered to plaintiffs a check in the amount of \$2,459.00 which, according to plaintiff's counsel, satisfied defendant's share of the professional survey invoice. Counsel indicates that defendant has also removed *some* of the encroachments; however, "we still have a portion of a barbeque and deck which needs to be removed."

Pursuant to CCP §664.6, if parties to pending litigation stipulate in a writing signed by the parties themselves, or in open court before a judge, the court, upon motion, may enter judgment pursuant to the terms of the settlement. The statute "was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809; in accord, *Khavarian Enterprises, Inc. v. Commline, Inc.* (2013) 216 Cal.App.4th 310, 328-329.)

In order to enforce an oral settlement made in court, it is necessary to show that the parties themselves were present and expressed unambiguous assent to all material terms. Neither the Minute Order datd 03/25/19, nor the supporting declaration, indicate that any party was subject to *voir dire* on the settlement terms, or otherwise expressed unambiguous assent. However, where the agreement was reached at a court hearing,

the court can fill in a factual abyss by reference to his or her own notes or recollection of what was agreed to – so long as the judge does not add new or different material terms. (See *In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905, 911; *Critzer v. Enos* (2010) 187 Cal.App.4th 1242, 1258; *Lindsay v. Lewandowski* (2006) 139 Cal.App.4th 1618, 1623; *Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1459; *Fiege v. Cooke* (2004) 125 Cal.App.4th 1350, 1353-1355; *Richardson v. Richardson* (1986) 180 Cal.App.3d 91, 97.)

Based on (1) defendant's partial performance in removing the offending fence, and (2) this Court's independent recollection that the parties agreed defendant would remove – at her own expense – anything encroaching once the boundary was determined by survey, this Court concludes that the settlement reached in open court and placed on the record included defendant's commitment to remove that portion of the BBQ and deck which the survey found to be encroaching. Plaintiffs' Motion to Enforce Settlement is GRANTED. Defendant's estate is hereby ordered to effectuate that aspect of the settlement within 90 days or face a daily penalty of \$50.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.